

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S NOTICE OF SYSTEMIC NON-ENGAGEMENT AND
BIFURCATED COURT BEHAVIOR**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits this Notice to preserve for the record a pattern observed over seven years of litigation—concerning the Court's persistent failure to engage with Defendant's filings, in contrast with the consistent and professional docketing by the Clerk's Office. The procedural record reveals a structural division between formal receipt and substantive treatment, which has had material consequences on the fairness and integrity of these proceedings. In support, Defendant states:

1. In prior related federal litigation, when Defendant was represented by counsel, the Court read and addressed the filings thoroughly, issuing

rulings that engaged with the facts and arguments and often vindicated Defendant's position.

2. When Defendant had earlier proceeded *pro se* in federal court, the Court nonetheless read and acknowledged the filings, even when denying relief, with reasoning and citations sufficient to show good-faith adjudication.
3. All federal orders and judgments were issued with clear explanations, often engaging directly with the substance and structure of Defendant's arguments.
4. In contrast, in this State Court action, Defendant has filed more than 150 pleadings—some of the crucial ones near-verbatim reiterations of arguments previously filed in federal court, or legal arguments drawn from precedent—but not one has received any substantive response, except through summary, unexplained denials.
5. Virtually all rulings from this Court on Defendant's motions and notices consist of single-line denials without analysis, reference to the record, or legal reasoning, including those raising jurisdictional defects, statutory bars, or unrebutted evidence of forgery and fraud.
6. This pattern appears to reflect not merely judicial disagreement, but a categorical refusal to read or engage with filings submitted by a pro

se, foreign, and geographically distant litigant, even when those filings meet or exceed the quality and structure of attorney submissions.

7. Defendant notes that even in instances where legal guidance was informally provided, the resulting filings still received no substantive review—suggesting the non-engagement is systemic and categorical, rather than content-based.
8. Defendant further notes that the Clerk's Office—including intake and docketing staff, presumably in Tallahassee—has consistently and professionally received, acknowledged, and docketed all of Defendant's filings in a timely and fair manner, and, after 150 filings has never failed to declare them all "*Accepted*". This bifurcation—between diligent administrative processing and judicial non-responsiveness—is now unmistakable.
9. Defendant is a foreign national with no legal or political allies, no financial means to secure representation, and no remaining local support. Friends in the United States who once provided moral assistance have been silenced under threat of litigation by Plaintiff's associates. These facts, although set forth repeatedly in filings, have never been acknowledged by the Court.

10. Defendant submits this Notice to ensure that any appellate or supervisory review has a clear record of the dichotomy in institutional behavior and its bearing on due process, access to justice, and the legitimacy of any resulting judgment.
11. The following supplemental reflection is submitted to underscore the broader constitutional implications of the procedural irregularities described above:

**SUPPLEMENTAL OBSERVATION REGARDING CONSTITUTIONAL
CONTRADICTION AND JUDICIAL DISCRETION**

Defendant, a national of a common law country where self-representation is not permitted under any circumstance, had expected—upon seeking justice on the soil of the United States—that the constitutional framework of this nation would operate in its full philosophical and legal depth.

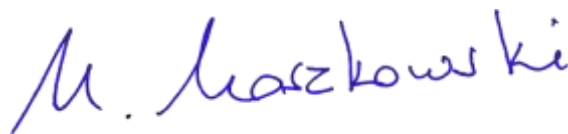
The U.S. Constitution, that unparalleled jewel of Enlightenment philosophy—authored jointly by thinkers of the New and Old Worlds—stands alone in its uncompromising clarity. Its First Amendment, rendered in the simplest possible terms, protects freedom of speech in such absolute fashion that many foreign jurists are left puzzled by its lack of exceptions. And from that same wellspring flows the inalienable right to express oneself in one's own defense, before one's own accusers, in any Court of Law—regardless of wealth, nationality, or creed.

Defendant therefore could not have imagined that such a right, philosophical and practical alike, would be single-handedly abrogated—not by statute or constitutional amendment, but by unilateral discretion of a state court judge acting in a purely local capacity—particularly one who has reportedly postulated for elevation to the Federal bench, a system whose very hallmark is written opinion, procedural due process, and adversarial symmetry.

WHEREFORE, Defendant respectfully requests that this Notice be accepted as part of the record and considered by any reviewing authority as evidence of persistent procedural exclusion and structural inequality in the handling of this case.

Respectfully submitted this 1st day of July, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 1st day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski